

KNOW YOUR RIGHTS: A PRACTICAL U.S. RIGHTS GUIDE

This guide covers important rights people in the United States may have when dealing with police, arrest, courts, protests, housing instability, victimization, stalking, harassment, mental-health intervention, homelessness, hotels, homeschooling and other difficult circumstances.

IMPORTANT: Some rights come from the U.S. Constitution or federal law and apply nationwide. Others vary significantly by state, county or city. When a section says **STATE LAW VARIES**, check the law where the event is actually occurring.

This is general legal information, not individual legal advice.

1. YOUR BASIC CONSTITUTIONAL RIGHTS

The U.S. Constitution protects fundamental rights including freedom of speech, freedom of the press, peaceful assembly, petitioning the government, religious freedom, protection against unreasonable searches and seizures, due process, protection against compelled self-incrimination, and important rights of people accused of crimes. The First Amendment specifically protects speech, press, peaceful assembly and petitioning government.

These rights primarily restrict **government action**. A private employer, website, store or property owner generally isn't bound by the First Amendment in the same way that the government is.

Constitutional rights are also not unlimited. Courts recognize lawful restrictions depending on the circumstances.

2. WHEN POLICE STOP OR QUESTION YOU

You generally have the right to remain silent.

You can say:

"I am exercising my right to remain silent."

You generally do not have to answer investigative questions simply because an officer asks them, although state identification laws and certain circumstances can require providing identifying information.

Ask:

"Am I free to leave?"

If the officer says yes, you may calmly leave.

If the officer says no, you can ask:

“Am I being detained?”

Do not physically resist an officer even if you believe the detention is unlawful. Challenge an unlawful detention afterward through a lawyer or court.

3. SEARCHES

The Fourth Amendment protects against **unreasonable searches and seizures**.

Police may sometimes conduct searches without a warrant because numerous legal exceptions exist. However, you do not have to voluntarily create an additional exception by consenting.

You can clearly state:

“I do not consent to a search.”

Do not physically interfere with a search.

Saying you don't consent is different from physically preventing police from conducting one. Your statement can also preserve the issue for a lawyer to challenge later.

Homes generally receive particularly strong Fourth Amendment protection, although emergencies, consent, warrants and other recognized exceptions can change what police may lawfully do.

4. IF YOU ARE ARRESTED

Remain silent about the alleged offense.

Say clearly:

“I am exercising my right to remain silent. I want a lawyer.”

Do not try to explain your way out of the situation after invoking your rights.

Do not sign statements you don't understand.

Do not discuss the alleged crime with other detainees.

Remember that conversations in jails, police vehicles and detention facilities may not be private.

The Fifth Amendment protects against compelled self-incrimination, while the Sixth Amendment provides important rights to counsel in criminal prosecutions.

If you cannot afford an attorney and you face a prosecution where the Constitution requires appointed counsel, you can request appointed counsel.

5. MIRANDA RIGHTS ARE OFTEN MISUNDERSTOOD

Police do **not** necessarily have to read Miranda warnings merely because they speak with, stop or even arrest someone.

Miranda generally concerns **custodial interrogation**.

The practical rule is simple:

If police are questioning you about something that could expose you to criminal liability, you do not need to wait for someone to ceremonially read your rights before saying:

“I am exercising my right to remain silent and I want an attorney.”

6. YOUR RIGHTS IN A CRIMINAL CASE

Criminal defendants have major constitutional protections, including due process, the presumption that the government must prove guilt beyond a reasonable doubt, protection against compelled self-incrimination and, depending upon the proceeding, rights involving counsel, confrontation of witnesses, compulsory process, notice of accusations and a speedy and public trial.

A defendant generally has the right to plead not guilty and require the government to prove its case.

A charge is **not a conviction**.

An arrest is **not a conviction**.

An accusation is **not proof of guilt**.

7. FREEDOM OF SPEECH AND EXPRESSION

The First Amendment protects a tremendous amount of expression—including speech that is unpopular, offensive, angry or critical of government.

It protects more than polite conversation.

Political speech receives especially significant constitutional protection.

People generally have the right to criticize:

Police

Government agencies

Politicians

Courts and government institutions

Public policies

Corporations

Social movements

Religion

Ideologies

However, freedom of speech does not create immunity from every generally applicable law.

Categories such as true threats, certain forms of harassment, defamation, incitement meeting the constitutional standard and some other narrowly defined categories can receive different legal treatment.

8. PROTEST AND PEACEFUL ASSEMBLY

The First Amendment protects the right of people to **peaceably assemble and petition government for redress of grievances**.

Government may nevertheless enforce certain content-neutral rules involving things such as time, place and manner.

Permits may be required for certain marches, street closures, amplified sound or large organized events.

Private property is different from traditional public forums such as many sidewalks and parks.

A protest does not automatically authorize trespassing, violence or destruction of property.

9. RECORDING POLICE AND PUBLIC EVENTS

People generally have significant First Amendment protection for recording police officers performing their duties in public, although the exact law and permissible restrictions can vary by jurisdiction and circumstances.

Do not physically interfere with officers.

Recording from a lawful location is different from obstructing an investigation.

Audio-recording laws also vary considerably between states, particularly where people have a reasonable expectation of privacy.

10. SELF-DEFENSE

STATE LAW VARIES SIGNIFICANTLY.

Every state recognizes self-defense in some form, but the circumstances permitting force—and particularly deadly force—are highly specific.

Generally, self-defense law focuses on concepts such as:

Imminence: Is the danger happening or immediately about to happen?

Necessity: Was force reasonably necessary?

Proportionality: Was the amount of force proportionate to the threat?

Reasonableness: Were the person's perceptions/actions legally reasonable under the circumstances?

States differ on retreat requirements, stand-your-ground rules, defense of others, castle doctrines and other details.

A threat that happened yesterday generally doesn't authorize retaliatory violence today.

Self-defense is defensive—not revenge.

11. DEFENDING PROPERTY

STATE LAW VARIES.

The law generally distinguishes **protecting human life from protecting property**.

You should never assume that someone stealing or damaging property automatically authorizes deadly force.

States have different laws regarding reasonable nondeadly force, burglary, occupied dwellings, vehicles and other circumstances.

If immediate physical safety isn't threatened, calling authorities, documenting the event, insurance remedies and civil remedies are generally much safer than physical confrontation.

12. PROPERTY AND ASSETS

Government generally cannot deprive a person of life, liberty or property without legally required process.

Different procedures exist for seizures, forfeitures, repossessions, evictions, liens and judgments.

If government takes property as evidence, ask for documentation identifying what was taken.

If property is seized pursuant to a criminal investigation or forfeiture proceeding, deadlines for challenging the seizure can matter enormously.

13. CRIME VICTIMS HAVE RIGHTS TOO

This gets overlooked constantly.

Under the federal Crime Victims' Rights Act, qualifying victims of federal crimes have rights including reasonable protection from the accused, notice of proceedings, participation in certain proceedings, conferring with the government's attorney, restitution where provided by law, proceedings without unreasonable delay, and treatment with fairness and respect for dignity and privacy.

States have their own victims' rights laws, which may provide additional protections. The Department of Justice specifically notes that victims' rights vary by state.

Victims may also be entitled to information about medical services, social services, counseling and other assistance.

14. REPORTING A CRIME

A person can report suspected criminal conduct to law enforcement.

A report does **not** guarantee that police will make an arrest, that prosecutors will file charges, or that investigators will reach the conclusion the reporting person expects.

When reporting ongoing conduct, preserve:

- Dates
- Times
- Locations
- Screenshots
- Original messages
- Emails
- Voicemails
- Username
- URLs
- Witness information
- Photos/video
- Police report numbers
- Prior reports
- Court documents

Preserve originals whenever possible rather than relying entirely on edited screenshots.

15. STALKING

Stalking laws exist federally and at the state level, but definitions vary.

Repeated unwanted conduct may become legally significant when it constitutes a prohibited course of conduct and creates the fear/distress or other effects required by the applicable statute.

Stalking can occur through physical following, surveillance, unwanted communications and—in circumstances covered by applicable law—electronic communications.

One incident may seem insignificant by itself while the **pattern** becomes legally important.

That is why chronological documentation matters.

16. CYBERSTALKING AND ONLINE HARASSMENT

Being online does not automatically place conduct outside criminal or civil law.

Depending on the facts and jurisdiction, conduct involving threats, stalking, impersonation,

unauthorized account access, intimate-image abuse, extortion, repeated unwanted communications or other behavior may implicate state or federal laws.

Preserve digital evidence before blocking/deleting when safe to do so.

Useful evidence can include:

- Full screenshots
- Screen recordings
- Profile URLs
- Username
- Dates/times
- Email headers
- Message histories
- Original files
- Links
- Witnesses
- Platform reports and confirmation numbers

Do not retaliate by unlawfully accessing another person's accounts or devices.

17. RESTRAINING ORDERS / PROTECTION ORDERS

STATE LAW VARIES GREATLY.

Depending upon the state and relationship/circumstances, courts may issue orders concerning:

- Domestic violence
- Dating violence
- Stalking
- Harassment
- Sexual violence
- Repeat violence
- Threats
- Elder abuse

Some jurisdictions permit emergency or temporary orders before a full hearing, followed by a later hearing where both parties can present evidence.

A person does not necessarily have to wait for a criminal conviction before asking a civil court about available protection.

Courthouse clerks, victim advocates and legal-aid organizations can often explain available filing procedures.

18. DOMESTIC AND DATING VIOLENCE

Protection isn't necessarily limited to married couples.

Depending upon state law, protections may extend to former partners, dating partners, household members, co-parents and other relationships.

Domestic/dating violence can involve more than physical assault. Depending upon applicable law and circumstances, stalking, threats, sexual violence and other conduct may qualify for legal remedies.

19. MENTAL-HEALTH HOLDS

This is an area where **STATE LAW MATTERS ENORMOUSLY.**

There is **no nationwide rule saying authorities may involuntarily hospitalize anyone simply because another person calls them “crazy.”**

States establish legal criteria and procedures for emergency psychiatric detention and longer involuntary commitment.

Those laws commonly require specific statutory circumstances involving danger, serious impairment, inability to meet essential needs, or comparable criteria—but the actual standard differs by state.

Emergency detention also does not automatically authorize indefinite confinement.

Longer confinement generally requires additional legal process.

20. FORCED PSYCHIATRIC MEDICATION

Involuntary hospitalization and involuntary medication are **not automatically the same legal question.**

People retain significant constitutional interests involving bodily integrity and medical decision-making.

However, the right to refuse medication is **not absolute.** Emergency circumstances, findings of incapacity, court proceedings and particular institutional settings can change the rules.

Someone facing involuntary treatment can ask:

What legal authority are you using?

What is my diagnosis?

What medication are you proposing?

What are the risks and alternatives?

Am I legally permitted to refuse?

How do I request review?

How do I contact a patient advocate or attorney?

State disability-rights organizations and Protection & Advocacy systems can be especially important resources in these situations.

21. MEDICAL CONSENT

Competent adults generally have substantial rights to make decisions concerning their own medical care, including informed-consent rights.

There are exceptions involving emergencies, incapacity, court orders and other circumstances established by law.

Patients can generally ask what treatment is being proposed, why it is being recommended, its significant risks, alternatives and what could happen if treatment is declined.

22. SLEEPING OUTSIDE

This one requires an **IMPORTANT UPDATE** because old internet resources frequently state the law incorrectly.

There is **not currently a nationwide constitutional right allowing a person to camp/sleep anywhere on public property simply because shelter is unavailable.**

In **City of Grants Pass v. Johnson (2024)**, the U.S. Supreme Court held that enforcement of generally applicable public-camping ordinances does not itself violate the Eighth Amendment's prohibition against cruel and unusual punishment.

Therefore:

CHECK LOCAL LAW.

Cities may regulate or prohibit camping, overnight parking and sleeping in particular public locations.

23. SLEEPING IN A VEHICLE

There is likewise **no blanket nationwide right to sleep overnight in a vehicle wherever you choose.**

Rules can depend upon:

City ordinances

Parking restrictions

Public versus private property

Campground regulations

Rest-area rules

Vehicle habitation ordinances

Trespass law

Some places allow overnight vehicle sleeping; others restrict it.

Permission from a private property owner can matter, but zoning or local ordinances can still apply.

24. HOMELESSNESS DOES NOT ERASE CONSTITUTIONAL RIGHTS

A person does not lose constitutional protections merely because they lack permanent housing.

People experiencing homelessness still possess rights involving due process, equal protection, searches, speech, religion and other constitutional protections.

But homelessness does not create an automatic exemption from otherwise valid laws concerning camping, trespass or public spaces.

25. LIVING IN HOTELS/MOTELS

STATE AND LOCAL LAW MATTER.

Hotel guests have contractual and privacy rights, but the precise relationship can change during a long stay.

In some jurisdictions, after certain conditions are met, a long-term hotel occupant may acquire rights resembling those of a residential tenant. In others, hotel occupants remain subject to specialized lodging laws.

Do **not** assume that staying 30 days automatically creates tenancy everywhere.

If a hotel attempts to remove a long-term resident, determine whether state/local law classifies that person as a **guest, transient occupant or tenant** before assuming ordinary eviction law does or does not apply.

Keep receipts and records showing payments and duration of occupancy.

26. HOMELESS CHILDREN AND EDUCATION

Children experiencing homelessness have additional federal educational protections under the **McKinney-Vento Homeless Assistance Act**.

Depending upon circumstances, these protections can address school enrollment, transportation and educational stability for children who lack fixed, regular and adequate nighttime housing.

Families living temporarily in motels, shelters or doubled-up arrangements because of loss of housing may sometimes qualify.

Ask a school district for its **McKinney-Vento liaison**.

27. HOMESCHOOLING

Homeschooling is legal throughout the United States, but **the requirements are state-specific**.

Depending upon the state, parents may need to:

- Notify a school district
- Maintain attendance records
- Teach particular subjects
- Complete assessments
- Maintain portfolios
- Meet instructional-day/hour requirements

Other states impose very few requirements.

The Department of Education maintains state-by-state information on private and home-school regulation; requirements can differ dramatically—for example, its Oklahoma page notes comparatively limited state regulation.

If a homeschooling family moves between states, **check the new state's requirements immediately**.

28. CHILDREN AND HOUSING INSTABILITY

Being poor, staying temporarily in a motel, moving frequently or experiencing homelessness does **not by itself establish child abuse or neglect**.

However, child-welfare statutes are state-specific, and authorities can intervene where statutory requirements concerning abuse, neglect, abandonment or danger are satisfied.

Families experiencing housing instability can ask schools, shelters and social-service organizations about McKinney-Vento protections and family-specific assistance.

29. LEGAL REPRESENTATION

There is an important distinction:

Criminal case: Constitutional rights to appointed counsel can apply.

Civil case: There generally is NOT a universal federal constitutional right to a free lawyer merely because someone cannot afford one.

Civil legal-aid organizations nevertheless provide free representation in many matters involving:

- Housing
- Domestic violence
- Benefits
- Family law

Consumer problems
Disability
Employment
Immigration
Protection orders

Search for the local **Legal Aid / Legal Services** organization serving the county.

30. YOU CAN REPRESENT YOURSELF

People generally may represent themselves in many court proceedings. This is called proceeding **pro se**.

But having the right to represent yourself doesn't mean doing so is always wise.

Court clerks can generally provide procedural information and forms but cannot serve as your attorney or provide individualized legal advice.

31. COURT RECORDS AND PUBLIC PROCEEDINGS

American courts have strong traditions of public access, although particular records or proceedings may lawfully be sealed or restricted.

People can often obtain:

Dockets
Orders
Judgments
Filed motions
Hearing information

Access rules differ among federal, state and local courts.

32. GOVERNMENT RECORDS

Federal and state laws provide mechanisms for requesting government records.

At the federal level, this is commonly done through the **Freedom of Information Act (FOIA)**.

States have their own public-records/open-records/sunshine laws.

These mechanisms can potentially obtain records from government agencies, although exemptions protect certain investigative, private, classified and other information.

33. YOUR RIGHT TO PETITION GOVERNMENT

This is literally written into the First Amendment.

People have a constitutional right to **petition government for redress of grievances**.

That can include contacting:

Elected officials
Government agencies
City councils
School boards
Legislatures
Inspectors general
Oversight offices

Criticizing government and asking government to change its conduct are core First Amendment activities.

34. DISCRIMINATION

Federal civil-rights statutes prohibit discrimination in particular contexts based upon protected characteristics.

Exactly which characteristics are protected depends upon the law and context—employment, housing, education, public accommodations, federally funded programs, etc.

State and local civil-rights laws can provide protections beyond federal law.

35. DISABILITY RIGHTS

Federal laws including the **Americans with Disabilities Act (ADA)** prohibit certain disability discrimination and require reasonable accommodations in covered contexts.

Protections can apply to employment, state/local government programs, transportation and public accommodations, depending upon the applicable title and circumstances.

Every state and territory also has a federally mandated **Protection & Advocacy (P&A)** organization providing disability-rights advocacy.

36. IF YOU BELIEVE AN OFFICIAL VIOLATED YOUR RIGHTS

Document:

Who
What
Where
When

Witnesses

Agency

Badge/employee number if known

Report/case number

Photographs/video

Documents

Exact statements you remember

Possible remedies can include:

Agency complaint

Internal affairs complaint

Inspector-general complaint

Civilian oversight complaint

State civil-rights agency

Federal civil-rights complaint

Attorney consultation

Civil lawsuit

Different claims have different statutes of limitation and administrative prerequisites. **Deadlines matter.**

37. IF SOMEONE TELLS YOU “YOU HAVE NO RIGHTS”

Do not assume that's true simply because the person saying it has authority.

Ask:

What law authorizes this?

Am I being detained?

Am I free to leave?

Do I have the right to refuse?

Can you give that to me in writing?

What is the case/report number?

Who supervises this decision?

What is the appeal/review process?

May I speak with an attorney?

Then document the answer.

The goal is not to argue endlessly in the moment. The goal is to **identify the legal authority being asserted and preserve the ability to challenge it.**

38. THE MOST IMPORTANT DISTINCTION: RIGHT vs. PROCEDURE

Sometimes you possess a right but must use a specific **procedure to enforce it.**

You may need to:

- File a motion
- Request a hearing
- Appeal
- File a complaint
- Request records
- Petition for an injunction
- Contact an ombudsman
- File within a deadline
- Preserve evidence
- Obtain counsel

Knowing **“this shouldn't happen”** isn't always enough.

The second question should be:

“What procedure exists for challenging it?”

39. BUILD YOUR OWN PAPER TRAIL

When something serious is happening, maintain a chronological record.

Record:

**DATE → TIME → EVENT → PERSON/AGENCY → EVIDENCE → ACTION TAKEN →
REPORT/CASE NUMBER → NEXT STEP**

Save copies somewhere other than your phone.

Email important files to yourself, maintain cloud backups, or provide copies to a trusted person where appropriate.

Do not alter original evidence.

40. WHEN YOU DON'T KNOW WHAT RIGHT APPLIES

Start with:

What state am I in?

Is this criminal, civil, family, housing, mental-health or administrative law?

Is the person restricting me a government official or private person/business?

Am I accused of something, the victim of something, or both?

Is there a court case already open?

Is there an immediate deadline?

Those five questions usually tell you **which body of rights and procedures you need to research next.**

THE BOTTOM LINE

Being **poor, homeless, accused, arrested, hospitalized, frightened, living in a motel, homeschooling, protesting, reporting abuse, experiencing stalking, or unable to afford an attorney does not erase your legal rights.**

But neither does the word **“rights”** mean that every desired action is constitutionally protected.

The strongest resource tells people both:

YOU HAVE RIGHTS

and

HERE ARE THE LIMITS, THE STATE-LAW VARIABLES, AND THE PROCEDURE FOR ASSERTING THEM.

For federal crime victims specifically, federal law expressly recognizes rights to reasonable protection, notice, participation in proceedings, consultation with prosecutors, applicable restitution, proceedings without unreasonable delay, and treatment with fairness, dignity and privacy. States separately provide their own victim-rights protections.